

Generic → fanciful marks

PROFESSIONAL DEFINITION

The Trademark Distinctiveness Spectrum ranks marks from generic and descriptive (weak or unprotectable) through suggestive to arbitrary and fanciful (strongest), guiding brand and naming strategy.

WHO DEVELOPED IT

A doctrine of trademark law crystallised in the United States by the Abercrombie case and reflected in trademark practice generally.

WHY IT WAS DEVELOPED

It was developed to explain why some marks receive strong protection and others none, informing how brands should be named.

FIGURE 1 · TRADEMARK DISTINCTIVENESS SPECTRUM

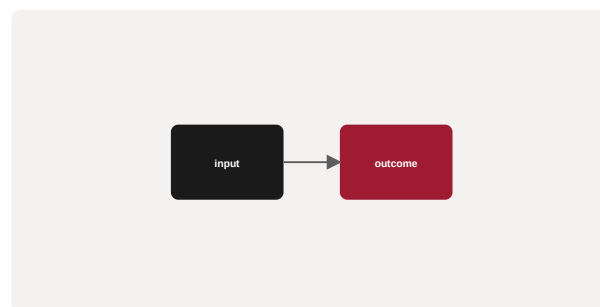


Figure 1. A schematic of the Trademark Distinctiveness Spectrum as applied in BARBM312 (illustrative).

HOW IT IS USED

A proposed mark is located on the spectrum; naming favours the distinctive end to secure stronger, more defensible protection.

WHEN IT IS USED

When naming AI products and building brand IP.

BY WHOM IT IS USED

Brand, marketing and legal teams.

INNOVATION RELATIVE TO THE PREDECESSOR TOOL

It links naming choices directly to legal strength, a consideration easily overlooked in fast-moving AI product launches.

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SOURCES (HARVARD REFERENCING STYLE)

Abercrombie & Fitch Co. v Hunting World, Inc. (1976) 537 F.2d 4.

Cornish, W., Llewelyn, D. and Aplin, T. (2019) Intellectual Property. London: Sweet & Maxwell.